

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {collateralActionCounty}
CAUSE NO. {collateralActionCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA,
null,

v.

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

REQUEST TO EXPUNGE A COLLATERAL ACTION PURSUANT TO I.C. 35-38-9-9.5

STATUTORY AUTHORITY

I.C. 35-38-9-9.5 — After an original expungement order is issued, a person may request expungement of an action or proceeding, including an administrative proceeding, factually or legally related to the arrest, charge, allegation, conviction or adjudication. This expressly includes a seizure, a civil forfeiture and a petition for specialized driving privileges.

I.C. 35-38-9-0.5 — Recorded on the track as authority for this mechanism. The registry does not state what this section supplies beyond listing it; no gloss is invented here.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of [COUNTY TO BE CONFIRMED] County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this request occurred in [COUNTY TO BE CONFIRMED] County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, IN 00000.

4. null is the State of Indiana.

5. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

6. Petitioner was charged with [CHARGE DESCRIPTION TO BE CONFIRMED] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED]. [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expungement on the following basis: null.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Request and enter an Order directing the expungement of the records of the collateral action identified in this request in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JAMIE Q. SAMPLE, null that the statements made in this request are true and correct to the best of my knowledge, information, and belief.

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, IN 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {collateralActionCounty}
CAUSE NO. {collateralActionCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA v. JAMIE Q. SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Request filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, [COUNTY TO BE CONFIRMED] County Court of Common Pleas, [ARRESTING AGENCY], and all other criminal justice agencies with records pertaining to this matter are hereby directed to expunge all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this request:

- Certified copy of the original expungement order (participant obtains from the clerk; LegalEase does not inspect it)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.